

1. The Plaintiff, Sean Trujillo, is a resident of the State of Colorado, residing at 2414 24th Street Road, Greeley, Colorado 80361 and has resided therein at all times necessary to this action.
2. At all times necessary to this action the Defendant Wal-Mart Stores, Inc. (hereinafter Wal-Mart) was and is a corporation with its offices and principle place of business being located at 702 SW 8th Street, Bentonville, AR 72716.
3. The Defendant Wal-Mart was doing business in the State of Colorado at all times necessary to this action.
4. At all times necessary to the within action the Defendant owned and was responsible for

the operation, upkeep, maintenance, repair, inspection, and management of a retail store located at 3103 23rd Avenue, Greeley, Colorado 80631 which included, but was not limited to, keeping the aisles, entrances, floors, and walkways on the premises reasonably clear of liquids and other substances, and inspected, in good condition and repair, well maintained, free of hazardous and dangerous conditions, and warning of hazardous and dangerous conditions, or to arrange for others to do the same.

5. Oral and written contracts may have existed and been in effect at all times necessary to this action between the Defendant and/or with other parties requiring the Defendant or other parties to keep the said retail store located at 3103 23rd Avenue, Greeley, Colorado 80631, including but not limited to, the floors, aisles, entrances, and walkway areas at the said retail store, safe, inspected, in good condition and repair, well maintained, reasonably free of liquids and other substances, free of hazardous and dangerous conditions, and to warn of hazardous and dangerous conditions, or to arrange for others to do the same. Plaintiff Sean Trujillo was and is a third-party beneficiary of said contracts.

6. On or about July 5, 2013, the Plaintiff Sean Trujillo went to the Defendant's retail store located at 3103 23rd Avenue, Greeley, Colorado 80631 to shop. As he was walking through the said store he slipped and fell on a large amount of a liquid substance on the floor.

7. The said incident involving Plaintiff Sean Trujillo occurred as a direct and proximate result of the Defendant's breach of obligations under C.R.S. 13-21-115 and the negligence and carelessness of the Defendant, or of its employees, agents, or joint venturers, for which it is vicariously liable. The breach of obligations under C.R.S. 13-21-115 and the negligence and carelessness by the Defendant, or its employees, agents, and joint venturers, for which it is vicariously liable, consisted of, but was not limited to, the following: failure to keep the area where the Plaintiff fell free from liquids and other substances; not removing liquids and other substances from the area where the Plaintiff fell; failing to have a system in place for the removal of liquids and other substances in the area where the Plaintiff fell; allowing a hazardous condition to exist at the said retail store when it knew or should have known about it; failing to warn of the hazardous and dangerous condition; unreasonably failing to exercise reasonable care to protect against dangers of which it actually knew or should have known; and failing to adequately supervise or perform the operation, upkeep, management, inspection, repair, and maintenance at the said retail store so as to allow for all of the foregoing.

8. As a direct and proximate result of the aforescribed breach of obligations under C.R.S. 13-21-115 and the negligence and carelessness of the Defendant or for which it is vicariously liable, and further, as a direct and proximate result of the aforescribed incident, the Plaintiff, Sean Trujillo, sustained grave and permanent bodily and psychological injuries, including, but not limited to, injuries to his right shoulder and neck, and emotional difficulties characterized by depression, anger, anxiety, energy loss, and frustration. The injuries so sustained have necessitated and will

necessitate extensive medical care and treatment, including the need for surgery, and have resulted in physical limitations.

9. As a direct and proximate result of the aforescribed breach of obligations under C.R.S. 13-21-115 and the negligence and carelessness of the Defendant or for which it is vicariously liable, and further, as a direct and proximate result of the aforescribed incident, the Plaintiff Sean Trujillo has incurred in the past and will incur in the future, medical, rehabilitation, and physiotherapy expenses related thereto; has suffered in the past and will continue to suffer in the future, great mental and physical pain and suffering; has suffered in the past and will continue to suffer in the future, a loss of time, travel expenses, a loss of income, a loss of earning capacity, a loss of enjoyment of life, impairment to the quality of life, emotional stress, inconvenience, and impairment, disability, and disfigurement, as well as other economic and non-economic damages, all to his compensatory damages in an amount to be determined at trial.

WHEREFORE, the Plaintiff herein prays for judgment against the Defendant as follows:

- A. For judgment in favor of Plaintiff Sean Trujillo in an amount to be determined at trial as and for compensatory damages;
- B. For judgment in favor of the Plaintiff Sean Trujillo awarding pre and post judgment interest as provided by law, costs, expert witness fees, attorneys' fees, expenses, and such other relief as the court may deem proper in the premises.

Respectfully submitted,

/s/ Jennifer L. Crichton
JENNIFER L. CRICHTON- # 37994
STEPHEN C. KAUFMAN- # 10564
CHARLES G. CRICHTON- # 38557

Plaintiff's Address:
2414 24th Street Road
Greeley, Colorado 80361

Filed via ICCES. In accordance with C.R.C.P. 121§1-26(9), a duly signed copy of this document is on file with the office of Kidneigh & Kaufman, P.C. and will be made available to other parties of the Court upon request.